Terms and Conditions

1. INTRODUCTION

1. Aim Arbitrage Services (Pty) Ltd (**AA**) trades cryptocurrencies, crypto tokens, stable coins and other crypto assets (**Crypto Assets**) as your agent for and on your behalf (**Service**).
2. By using the Service, you agree to be bound by the following terms and conditions (together **Terms**). You must read the Terms very carefully. If you do not want to be bound by the Terms you must not use the Service.
3. **These Terms apply to Clients who are defined as "consumers" for purposes of the Consumer Protection Act, No 68 of 2008 (CPA). There are clauses in these Terms that require your careful consideration. To assist you, those terms where you are required to assume a risk, which may limit any of your rights, which provide for specific acknowledgements of fact or warranties required by or from you or which limit or exclude our liability, or indemnify us, appear in bold font below. You acknowledge that you have read and appreciate the importance of all of the provisions in these Terms, including without limitation, the clauses in bold font. Nothing in these Terms is intended to unlawfully restrict, limit or avoid any rights or obligations created in terms of the CPA, to the extent that such legislation is applicable. Please seek independent professional advice if you do not understand any provisions of these Terms.**
4. **AA may change these Terms at any time by following the process set out in clause 11.3**.
5. **AA's privacy policy is set out in clause 15.**
6. **AA is a technology and services company and does not render, or purport to render, any form or financial advice and users of its technology and services acknowledge it.**
7. **All users of AA's technology and services does so entirely on their own risk and AA shall not be held accountable for any loss or damages whatsoever. The users of AA's technology and services acknowledge it.**
8. **All users of AA's technology and services does so on the utmost confidentiality and warrant to treat all AA's services and technology on a strictly confidential basis.**
9. **All users of AA's technology and services warrant that they shall not publish or cause the publicity of opinions of AA in any form of media whatsoever, without the prior written consent of AA.**

2. DEFINITIONS AND INTERPRETATION

In these Terms, unless the context shows otherwise –

1. **Applicable Laws** means, in relation to you, all statutes, regulations, rules, policies, circular, guidance notes and the like of any governmental authorities, the common law, the decision of governmental authorities or courts, and other similar provisions, from time to time, compliance with which is mandatory for you, including the Financial Intelligence Centre Act, No 38 of 2001 (**FICA**), the Prevention of Organised Crime Act, No 121 of 1998, the Prevention and Combating of Corrupt Activities Act, No 12 of 2004, Consumer Protection Act, No 68 of 2008 and all tax laws and exchange control statutes and regulations published under the Exchange Control Regulations, 1961 made in terms of the Currency and Exchanges Act, No 9 of 1933 (**Exchange Control / Excon Regulations**);
2. **Fiat Funds** means fiat currency funds (in ZAR) belonging and/or accruing to you during the course of you making use of the Services and which funds are held by us in trust on your behalf in terms of clause 4.2.5
3. **Financial Services Laws** means the Collective Investment Schemes Control Act, No 45 of 2002, the Credit Rating Services Act, No 24 of 2012, the Financial Advisory and Intermediary Services Act No 37 of 2002 (**FAIS**), the Financial Institutions (Protection of Funds) Act, No 28 of 2001),, the Financial Markets Act, No 19 of 2012, the Financial Sector Regulation Act, No 9 of 2017, the Banks Act, No 94 of 1990, National Payment System Act, No 78 of 1998, and includes any like legislation;
4. **include** means to include with no limitation;
5. **Intermediary** means the intermediary authorised to perform the functions set out in clause 4.2.1 and whose details are set out in clause 20;
6. **Mandate** means the mandate concluded between you and AA for the provision of Services in terms of clause 4;
7. **person** includes a company, corporation, trust, partnership and other entity whether or not having separate legal personality;
8. **Third-Party Fees** means all fees and costs charged by third-party services providers and sub-contractors in terms clause 4.2.8 for which you are liable
9. **you or client** means the individual (natural person) who uses the Service or the Website, as principal; and
10. different grammatical forms of the same word have a like meaning.

3. SERVICE

1. For the duration of these Terms, you appoint AA as your agent to trade, buy or sell Crypto Assets on your behalf (**Service**) in terms of the Mandate in clause 4, which appointment AA accepts, subject to the Terms.

2. Despite any other provision of these Terms, AA reserves the right to decline any instructions received from you pursuant to these Terms and AA may elect in its sole and absolute discretion to discontinue the Services at any time, or may elect not to proceed with any transaction or Service contemplated under these Terms, including without limitation, to refrain from purchasing, selling or holding any Crypto Assets at any time.

4. SERVICES MANDATE

1. The Services and your appointment of AA in terms of clause 3.1 will be subject to the conditions and authority granted by you in terms of this clause 4.

2. You authorise and mandate AA and any of its office bearers, employees, agents and subcontractors, as your agent, to do the following on your behalf, namely to –

    1. introduce you to the Intermediary who is authorised to purchase foreign currency on your behalf in the spot foreign exchange market from an Authorised Dealer in Foreign Exchange;

    2. purchase Crypto Assets on your behalf from an Offshore Exchange or Local Exchange as determined by AA;

    3. hold on your behalf or take custody of Crypto Assets purchased by AA on your behalf (Your Crypto Assets);

    4. sell or trade Your Crypto Assets on your behalf on an Offshore Exchange or Local Exchange as determined by AA;

    5. hold in trust any Fiat Funds on your behalf;

    6. transfer the Fiat Funds held by us in trust to your nominated bank account or bank account opened by the Intermediary on your behalf with an Authorised Dealer (Your Bank Account) within 2 business days of any Profit being received into a trust or at a later date communicated to you in in terms of clause 10, subject to the applicable laws;

    7. to the extent applicable, exercise, on your behalf, all rights which you may now or in future have in relation to the payment of all Fiat Funds into Your Bank Account;

8. deduct any Service Fees due by you, subject to the terms set out in Annexure A;

9. submit and follow-up on FIA (Foreign Investment Allowance) applications on your behalf via SARS eFiling;

10. subcontract any or all of AA's obligations to authorised third parties as AA deems fit and you agree to be bound by the terms and condition applicable to the services provided by such third-parties including the payment of any Third-Party Fees; and

11. utilise Fiat Funds held by us in trust to pay, on your behalf, all Third-Party Fees due by you;

3. You acknowledge and agree that:

    1. the ownership of Crypto Assets purchased by AA on your behalf shall vest with you at all times and shall at no point pass to AA;

    2. while Crypto Assets purchased by AA on your behalf may be held in an AA Offshore Exchange Account or AA Local Exchange Account, it will at all times be held on your behalf and for your benefit in terms of the custody mandate authorised by you under clause 4.2.3; and

    3. any purchase, sale or trade of crypto assets made by AA on your behalf is done at the discretion of AA on an automated or manual basis.

4. To the extent applicable, AA guarantees to you the transfer of all Fiat Funds realised through the selling or trading of Your Crypto Assets from time to time to Your Bank Account in accordance with paragraph 4.2.6, provided that the maximum amount receivable from AA shall always be limited to the net proceeds of recovery on enforcement by AA of AA's rights and remedies against the Intermediary or any other third party in connection with the transfer of such Fiat Funds and any security granted in respect of their obligations, save that AA's liability pursuant to this paragraph shall never exceed the amount of Fiat Funds payable to you.

5. PROFITS AND LOSSES

1. For certainty, the profits (**Profit)** and losses (**Losses**) realised by you in trading, buying or selling of your Crypto Asset under the Mandate, accrues to you and not to AA or any other third party.

6. SERVICE FEES

1. In consideration for the Services rendered under these Terms, AA will charge you service fees at the rate and subject to the conditions set out in Annexure A.
2. AA may amend its fees and charges for use of the Service and will try its best to notify you of the amendment in terms of clause 11.3. However, by continuing to use the Service after you have been notified of the new fees and charges as amended, you agree to pay those amended fees and charges.
3. AA will not refund its fees and charges under any circumstances.

7. TAXES

1. You are solely responsible for all taxes, withholding taxes, levies, imposts and other like applicable amounts for the use of the Service. You must declare all income and capital gains earned on your trading to the South African Revenue Services in accordance with tax law and practice. AA is not responsible for notifying you of a change in tax law or practice and you should seek professional advice as to your personal tax situation.
2. AA is entitled to deduct or withhold any tax as may be required by law to be deducted or withheld from any payment made under these Terms or any transaction or from any amount of money credited Your Bank Account.
3. All amounts charged in relation to Services exclude value-added tax.

8. DISCLAIMERS AND INDEMNITIES

You acknowledge and agree that –

1. ***you have read, and you understand, these Terms;***
2. ***by using the Service, you are bound by these Terms;***
3. ***you have sufficient knowledge of Crypto Assets to enter into transactions, and understand that you are solely responsible for determining the nature, potential value, suitability, and appropriateness of the Service;***
4. ***trading in Crypto Assets are regarded by some as being high-risk;***
5. ***Crypto Asset markets can be volatile and prices can fluctuate significantly, which could result in sudden and significant increases or decreases in the value of your Crypto Assets;***

6. ***the Services do not in any way constitute the remission or transfer of money;***
7. ***you have carefully assessed whether your financial situation and risk tolerance is suitable for buying, selling or trading Crypto Assets;***
8. ***you are solely responsible for any decision related to the use of the Services;***
9. ***the decision to use the Service is entirely at your own risk;***
10. ***you are solely responsible for ensuring that you are fully aware of, and compliant with, all laws applicable to the use of the Service including those related to taxes and Exchange Control Regulation;***
11. ***in terms of Exchange Control Regulation, allowances utilised for the purposes of making use of the Services cannot be repatriated and thus, any Profits realised will not repatriate the Single Discretion and Foreign Investment Allowance used by the Services***
12. ***past returns and Expected Profit indications are not guaranteed in any manner;***
13. ***you have been free to get independent professional advice (including legal, financial and tax advice) about the nature and effect of the Terms, trading in Crypto Assets, and the use of the Service;***
14. ***AA has not provided you with any advice relating the buying, selling, trading or otherwise holding or dealing with Crypto Assets, Your Bank Account or any financial product or foreign currency and these Terms in no way constitute advice of any kind whatsoever;***
15. ***the buying, selling, trading or otherwise holding or dealing with Crypto Assets is not regulated in South Africa;***
16. ***AA does not warrant, guarantee or represent that you will realise Profits, or that you will realise a minimum amount of Profits or a maximum amount of Losses;***
17. ***AA, and its office bearers, employees, agents and subcontractors will not be liable to you or anyone else for any damages, losses or costs of any nature (whether direct, indirect, punitive, incidental, special or consequential) (together*** **Damages*****) howsoever arising out of or in any way connected with use of the Services or the Website, and whether or not such Damages are based on contract, delict, strict liability or otherwise;***
18. ***AA's liability to you or anyone else for Damages will be limited to the Service Fee for the 12-month period immediately preceding the date that the cause of action giving rise to the Damages has occurred;***

19. ***subject to the applicable laws, you indemnify and hold harmless AA, and its office bearers, employees and agents, from and against any Damages, losses or costs of any nature howsoever arising out of your use of the Service, the services provided by any subcontractor or third-party service provider and/or your breach of these terms;***

20. ***subject to the applicable laws, you indemnify and hold harmless AA, and its office bearers, employees and agents, from and against any Damages, losses or costs of any nature howsoever related to or as a result of any act or omission of AA which causes you to be in default of any of its obligations under terms and conditions applicable to services provided by subcontractors or third-party service providers in terms of clause 4.2.5;***

21. ***AA may, without notice and in its sole discretion, terminate, suspend or restrict the Service if AA suspect that you may be using the Service in a manner that is inconsistent with the letter or spirit of these Terms***

9. YOUR WARRANTIES

You warrant that –

1. when using the Service, remitting money, or when exercising your rights and when complying with your obligations, you will at all times comply with all Applicable Laws, including exchange control laws;

2. **you are above the age of 18 and have the lawful capacity to agree to, and be bound by, these Terms**;

3. **you will only purchase offshore Crypto Assets utilising your Single Discretionary Allowance or your Foreign Investment Allowance per calendar year (Excon allowances) strictly in accordance with the Exchange Control Regulations, and when taken together with your other foreign investments, your transactions under these Terms will not exceed your allocated Excon allowances in any given calendar year;**

4. **you have not taken transfer of, nor are you attempting to use the Excon allowance of any other person;**

5. **you have not entered into a loan agreement or otherwise borrowed money for purposes of entering into transactions as contemplated in these Terms and you warrant that all assets or monies used to fund Your Bank Account, Your Offshore Exchange Account and/or Your Local Exchange Account represent your personal assets or monies obtained from lawful sources and in accordance with Applicable Laws and do not constitute the assets or monies of another person;**

6. **by entering into these Terms, you will not establish any simulated transactions, nor will you circumvent the Excon Regulations, Applicable Law or the Financial Services Laws;**
7. **you have entered into these Terms of your own volition and have not been induced or unduly pressured to execute transactions under these Terms, and in particular you warrant that you instruct AA to execute your investment decisions by authorising AA to deduct the Rand amount standing to the credit of Your Bank Account to pay for the purchase and sale of Crypto Assets from Offshore Exchanges and Local Exchanges;**
8. **you are not a United Nations "Specially Designated National" and/or on the United Nations' "Blocked Persons List" and/or are not confirmed by any government or other national authority to be a person or entity who has any restrictions on their capacity to trade freely and/or internationally, for whatever reason;**
9. **you will, upon request by AA or its agents and subcontractors, provide AA or its agents or subcontractors with all such information and documents as they may require to provide the Service or to confirm your compliance with these Terms**;
10. **all information and documents you provide to AA or its agents and subcontractors will be true, accurate and complete in all respects;**
11. **you are not a national or resident of the United States of America**;
12. you will not use the Service for or in relation to any –
    1. violation of any Applicable Laws;
    2. undertaking, facilitating or supporting criminal activity of any kind, including money laundering, terrorist financing, illegal gambling operations or malicious hacking;
    3. abusive activity, including taking any action that may negatively affect the performance of the Service or AA's reputation;
    4. attempting to gain unauthorised access to any account;
    5. paying in to or otherwise supporting pyramid schemes, Ponzi schemes, matrix programmes, "get rich quick" schemes, multi-level marketing programmes or high-yield investment programmes;
    6. fraudulent activity, including taking any actions that defraud AA or any other customer of AA, or the provision of any false, inaccurate, or misleading information to AA or its agents or subcontractors;

7. transactions involving items that may help facilitate or enable illegal activity;
8. transactions involving gambling;
9. sale or purchase of narcotics or controlled substances; or
10. intellectual property infringement.

10. COMMUNICATIONS

You agree that –

1. any communications, agreements, notices and/or any other documents (together relating to your use of the Service will be provided to you by email to the email address you have provided to AA, or through any other form of electronic communication; and
2. you will advise AA of your current email address from time to time.

11. TERMINATION, SUSPENSION OR RESTRICTION OF SERVICE

1. AA may, in its sole discretion, and without notice or liability to you, terminate, suspend or restrict the Service or your use of the Service for any reason.
2. If AA terminates the Service, it will, subject to the applicable laws-:
    1. pay to you all Fiat Funds held by us on your behalf into Your Bank Account, less Third-Party Fees, disbursements, and Service Fees due by you; and
    2. transfer all Crypto Assets held by us on your behalf into your nominated Crypto Asset wallet which nomination must be communicated to us in writing within 2 business days of us notifying you of the Services being terminated.
3. AA may, in its sole discretion, amend these Terms by giving you 5 business days written notice. If you do not agree with the changes we send to you, you may terminate this agreement with us. We will send the notice of amendment to the email address which you disclosed to us when you accepted these Terms

12. UNCONTROLLABLE EVENTS

***AA is not liable to you for any failure to fulfil its obligations under these Terms if and to the extent that the failure is caused by new law or any* force majeure,**

including circumstances beyond its reasonable control, flood, fire, earthquake, war, government restrictions, acts of god, general power outages or interruption of telecommunications, the suspension of trading on the Offshore Exchange or Local Exchange, or a pandemic or steps taken to curb the spread of the pandemic.

13. INTELLECTUAL PROPERTY RIGHTS

1. All intellectual property owned by AA or held by AA under any licensing or similar agreement with any third party, remains the sole property of AA or that third party.
2. You may not use any of AA's intellectual property without AA's prior written approval in each case.

14. FICA

1. You undertake to provide whatever information and documentation we may require from you in order to determine and verify your identity, your source of funds and contact details, and you will take all steps necessary to ensure that we are able to fulfil all of our obligations (including without limitation, reporting obligations) which may arise in terms of FICA or any applicable anti-money laundering legislation to which you or AA may be subject from time to time.

15. FAIS

1. AA does not render financial advice and therefore is not required to obtain any form license.

16. PRIVACY POLICY

AA respects your privacy and your personal information, and will take reasonable measures to protect it, as detailed in AA's Privacy Policy.

17. BREACH OF TERMS

If you breach any of these Terms, AA may, at its choice and without prejudice to any other rights that AA may have in law, either claim specific performance, or terminate, suspend or restrict the Services or Website immediately without notice to you, and, in either case, claim damages from you.

18. GOVERNING LAW, JURISDICTION, AND RESOLUTION OF DISPUTES

1. These Terms will be construed in accordance with and governed by the laws of South Africa, regardless of conflict of law principles.
2. The parties irrevocably and unconditionally agree to the exclusive jurisdiction of the Western Cape division of the High Court of South Africa in respect of all disputes (**Disputes**) arising from or in connection with your use of the Service or the Website or these Terms.
3. All Disputes will be settled by way of arbitration by a single arbitrator under the rules of the Arbitration Foundation of South Africa by a senior advocate of the Cape Bar agreed to by the parties or, failing such agreement within 10 days of a person calling for such agreement, nominated by the chairman of the Cape Bar Council.

19. GENERAL

1. Clause headings are for ease only and are not used to interpret these Terms.
2. A reference to a gender includes the other genders, a natural person includes a juristic person, and the other way around, the singular includes the plural, and the other way around.
3. These Terms constitute the entire agreement between AA and User about the subject matter of these Terms.
4. AA gives no warranties, and makes no representations which are not contained in these Terms.
5. These Terms may only be modified by a written amendment signed by an authorized executive of AA, or by AA changing the Terms in the manner set out in the preamble above.
6. Any extension of time or indulgence which AA may grant User is not a waiver of any of the rights of AA, who may exercise any rights against User which may have arisen in the past or which might arise in the future.
7. All terms of these Terms are severable from each other, despite the way they have been grouped together or linked grammatically.
8. You and AA are independent contractors. These Terms are not interpreted to put you and AA in another relationship, specifically not in any partnership or joint venture relationship.

20. INFORMATION ABOUT AA

1. Name: Aim Arbitrage (Pty) Ltd
2. Registration number: 2021/389891/07

3. Email address: aldo@aim.za.com
4. Physical address: Summercourt Farms, Stellenbosch, 7600

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Annexure A

1. SERVICE FEES

1. AA will charge you a fee in an amount equal to the percentage of your Profits, including VAT (if any) notified to you from time to time (**AA's Performance Fee**), free of set-off. The percentage is calculated on a sliding-scale based on the value of your Investment/Traded Amount (see Table 1 below).
2. AA may, in its discretion, recover the Service Fees and disbursement in such manner as it deems fit, including by appropriating an equivalent amount of Crypto Assets or Fiat Funds held by us on your behalf under the Mandate, or any combination of the above.

Investment Amount per Cycle	Percentage Fee
R200,000 – R299,999	30%

Table 1: Performance Fee Tiering

3. After each trade, AA will provide you with a detailed breakdown of the amount of your Profits or Losses, Fiat Funds, Service Fees, and Third-Party Fee and disbursements as the case may be.